



2026:AHC:150306-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 20742 of 2026

Ashish Pal

.....Petitioner(s)

Versus

State Of U.P. And 4 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Birendra Kumar
Counsel for Respondent(s)	:	C.S.C., Kartikeya Saran

Court No. - 1

HON'BLE AJIT KUMAR, J.
HON'BLE SIDDHARTH NANDAN, J.

1. Heard Sri Birendra Kumar, learned counsel for the petitioner and Ms. Sonal Singh, learned Advocate holding brief of Sri Kartikeya Saran, learned counsel appearing for respondent nos.2 to 4.

2. By means of the present petition filed under Article 226 of the Constitution, petitioner has prayed for a direction in the nature of writ of mandamus commanding respondent authorities to grant electricity connection to the petitioner pursuant to the application moved by him for new electricity as, according to him, the brother of the petitioner who is also residing in the same premises has got the electricity disconnected and has surrendered the electricity connection.

3. It is contended on behalf of the petitioner that brother of the petitioner is setting up a title on the basis of some Will and hence the petitioner should leave the place. However, it is submitted that the brother of the petitioner had also instituted a suit against the petitioner in which the civil court has granted interim injunction in the nature of *status quo*. Since the petitioner and his brother were residing before the death of the testator, it is argued the petitioner has every right to reside in the said premises until a decree of eviction is passed by the court civil court. It is submitted that electricity is an essential service to be provided by the concerned authorities and hence has to be provided upon an application being made by a person to the premises where he resides.

4. It is submitted that petitioner is ready to furnish indemnity bond and

surety against the electricity connection and hence his application may be considered and disposed of.

5. Learned Advocate appearing for the respondent could not dispute this fact that there is an order of *status quo* operating in a civil suit between the parties and the petitioner is the cousin of the plaintiff, who has instituted the suit. She could also not dispute that there is a provision of grant of electricity connection to a person who lacks standard ownership proofs (like a registered property deed) or needs a connection as a tenant without the landlord's consent by furnishing indemnity bond under Clause 4.4 of Chapter 4 of the UP Electricity Supply Code, 2005 by filling indemnity form (Annexure-4.2).

6. In given facts and circumstances, we **dispose of** the petition with direction to petitioner to furnish indemnity form as per the relevant provisions contained in Clause 4.4 of Chapter 4 of the UP Electricity Supply Code, 2005 within two weeks from today. The concerned respondent authority, upon receipt of the same, shall proceed to consider and grant electricity connection to the petitioner, in accordance with law, within a further period of four weeks.

(Siddharth Nandan,J.) (Ajit Kumar,J.)

July 22, 2026

Prachi